

lord in respect of charging the land are not to be exercised by trustees for ecclesiastical or charitable purposes, except with the previous approval in writing of the Charity Commissioners (c).]

63. **Power of majority to pass legal estate.**—By 32 & 33 Vict. c. 110, s. 12, it is enacted that “where the trustees or persons acting in the administration of any *charity* have power to determine on any sale, exchange, partition, mortgage, lease, or other disposition of any property of the charity, *a majority of those trustees or persons who are present at a meeting of their body duly constituted*, and vote on the question, shall have and be deemed to have always had full power to execute and do all such assurances, acts, and things as may be requisite for carrying any such sale, exchange, partition, mortgage, lease, or disposition into effect; and all such assurances, acts and things shall have the same effect as if they were respectively executed and done by all such trustees or persons for the time being, and by the official trustee of charity lands” (d). The majority, therefore, in those cases of charity can bind the estate not only in equity but at law also, and that, whether the legal estate be vested in the trustees or other the persons aforesaid, or in the official trustee of charity lands.

64. **Charities may be incorporated.**—By “The Charitable Trustees Incorporation Act, 1872” (35 & 36 Vict. c. 24), it is enacted by s. 1, that from the date of the Act the trustees or trustee for the time being of any charity, may apply to the Charity Commissioners for a *certificate of registration*, and the Commissioners may grant such certificate subject to such conditions and directions as they may think fit as to the qualifications and number of the trustees, their tenure or avoidance of office, and the mode of appointing new trustees, and the custody *and use of [*548] the common seal, and thereupon the trustees shall become *a body corporate, by the name described in the certificate*, and may sue and be sued in their corporate name, and

[(c) 46 & 47 Vict. c. 61, s. 40.] enactment of 23 & 24 Vict. c. 136,

(d) And see the nearly similar s. 16, and *ante*, p. 540.